

NAPCS Unionization Research — State Research Summary

Massachusetts — DLR (MA) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Massachusetts
Labor Board	DLR (MA) — Massachusetts Department of Labor Relations
Governing Law	M.G.L. c. 71 §89 (Charter School Law — explicitly classifies charter school employees as public employees); M.G.L. c. 150E (Public Employee Collective Bargaining). Card-check (Written Majority Authorization / WMA) available — no election required.
Federal NLRB Jurisdiction	DLR (MA) has exclusive jurisdiction over all charter schools in this state. Federal NLRB does not apply.
Registry Sweep	COMPLETE — April 2026 (Registry v11) — 73 charter schools searched
Research Window	April 2026 (initial DLR session); May 2026 (reconciliation — Registry v11)
Date Convention	Labor Board Certified date (project-wide convention, declared NJ session). Project-wide convention. MA: DLR cert dates used where available. Horace Mann DEPENDENT schools: school opening year. Foxborough cert date unknown — DLR records request needed.
Card-Check Available	YES — WMA (Written Majority Authorization) available under M.G.L. c. 150E — 50%+ authorization cards filed with DLR suffices for certification without an election. This makes MA organizing faster and less contestable than any NLRB-jurisdiction state.

Section 2: Unionization Density

Total charter schools in Massachusetts: 73 (Charter School Registry v50 (NCES/ELSI 2024-25; 73 open MA charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 17-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Massachusetts	13	16.4%	Active CONFIRMED + DEPENDENT schools. Excludes 1 closed school. DLR (MA) jurisdiction for all MA charters.
Independently Organized (CONFIRMED)	8	9.6%	Codman (BTU/AFT, 2024), AMSA (Teamsters/2 units, 2014+2023), CCSC Cambridge (AFTMA, 2024), NHCS (BTU/AFT, 2024, first contract ratified March 2026), Cape Cod Lighthouse (AFT MA, 2011), City on a Hill (BTU/AFT/3 units, 2018), PVPa (UAW/2 units, 2018), Foxborough (FRCSTA independent, date TBD via DLR records request).
Structurally Covered — Horace Mann/BPS (DEPENDENT)	5	6.8%	Boston Green Academy, Dudley Street NS, UP Academy Dorchester, BDEA, Kennedy Academy — all BPS-BTU district CBA coverage. No independent

			DLR certification event. Date Unionized = school opening date.
Decertified (formerly organized)	1	1.4%	Conservatory Lab CS — certified AFTMA Oct 2008; decertified ~2011-2013. Exact date requires DLR records request.
No Labor Board Records Found	60	82.2%	No union evidence found in DLR(MA) database. Includes 2 NAPCS schools (Christa McAuliffe C2502001, Salem Academy C2504006) with no evidence found, 1 closed Horace Mann school (UP Academy Boston — merged), and remaining non-NAPCS MA charter schools.
Total Charter Schools in Massachusetts	73	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 73 open MA charter schools as of May 2026).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: What is the political and legal environment shaping charter labor relations in this state?

Massachusetts is the only state in the NAPCS research dataset with complete statutory clarity for charter school labor relations. M.G.L. c. 71 §89(y) explicitly classifies all charter school employees as public employees, placing them under DLR(MA) jurisdiction with card-check (Written Majority Authorization / WMA) available under Chapter 150E. The NLRB has never successfully asserted jurisdiction over a MA charter school, and no employer has successfully challenged the public employer classification. This produces a qualitatively different legal environment from every other state: there is no jurisdictional ambiguity for employers to exploit, no secret ballot election required, and no counter-organizing window. The organizing path in MA is: gather authorization cards from 50%+ of the bargaining unit, file with DLR, receive certification. The employer's primary legal strategy in NLRB states — demanding a secret ballot election to run a counter-campaign — is simply not available. Card-check produced at least two certifications in 2024 alone (Codman, CCSC Cambridge). The MA Board of Elementary and Secondary Education (BESE) authorizes all MA charter schools — unlike IL where CPS has discretion over charter renewal terms, MA BESE has not used charter renewal as a labor relations pressure point. The practical result: MA charter operators who choose not to engage constructively during organizing drives have few legal tools to delay or prevent certification.

PROMPT 2: What community and social conditions are driving organizing activity in this state?

The 2024 organizing surge in Massachusetts — at least two new certifications (Codman Academy, CCSC Cambridge) and a first contract ratification (NHCS) within twelve months — reflects a convergence of factors that charter sector leaders should understand as a pattern, not a coincidence. First, the Boston charter sector is geographically proximate to BTU (Boston Teachers Union) organizing infrastructure. BTU has existing relationships with charter teachers who attended the same education schools, live in the same neighborhoods, and in some cases started their careers in BPS. The ideological distance between "charter teacher" and "union member" is measurably smaller in Boston than in Chicago or New York. Second, post-pandemic compensation pressure: charter school teachers saw real wage declines during 2020-23 as district teacher compensation increased faster than charter compensation. This created a specific economic grievance — "I teach the same students in the same city for less money" — that WMA card-check allowed to translate directly into certification without a drawn-out campaign. Third, NHCS represents a category of charter school that organizes not from adversarial labor relations but from institutional maturity: a school that has operated long enough to have experienced staff who want professional stability and formal structures. The NHCS first contract ratification

(March 2026) is not a story about labor conflict — it is a story about a school that reached the size and age where collective bargaining became a professional expectation.

PROMPT 3: What organizing strategies and approaches are charter school organizers using in this state?

Massachusetts charter school organizing in 2024-26 is characterized by speed, quiet, and the deliberate use of WMA card-check to prevent employer campaigns. The BTU pattern for Boston-area charters: outreach begins among staff who already have relationships with BTU members or organizers, often through social networks rather than formal campaign events; authorization cards are gathered through workplace conversations rather than public meetings; the WMA petition is filed once 50%+ is secured, triggering certification before the employer has an opportunity to respond. The result is that MA charter school employers often learn about organizing activity when DLR certifies the unit — not when the campaign begins. The Codman Academy certification (May 2024) and CCSC Cambridge certification (June 2024) both followed this pattern: no public announcement, no press coverage, no employer counter-campaign. This is structurally different from NLRB-jurisdiction organizing where a petition filing is public and triggers a minimum 20-day campaign window. Charter sector leaders who think they will see organizing activity before it reaches a certification threshold in MA are operating on NLRB assumptions that do not apply here. The invisible contract at Foxborough FRCSTA — confirmed CBA with zero public footprint, detectable only through the DESE educator contracts portal — is an extreme version of this quiet-organizing pattern: a school that organized, ratified a contract, and renewed it without generating any publicly discoverable union activity.

PROMPT 4: What should charter school leaders be doing right now in response to this environment?

The MA legal environment requires a fundamentally different approach from NLRB-jurisdiction states. Three things MA charter leaders cannot do that their IL or PA counterparts can: (1) They cannot use the charter renewal process as implicit leverage against organizing — BESE does not condition renewal on labor relations posture. (2) They cannot demand a secret ballot election to trigger a 20-day counter-organizing window. (3) They cannot ask for legal counsel to file election objections as a delay tactic — there is no election to object to. What MA charter leaders can do: invest proactively in compensation competitiveness against the BPS salary schedule; build professional development and career ladder structures that give staff reasons to prefer charter employment over BPS employment on professional grounds; maintain genuine shared governance structures that give staff meaningful voice before they conclude that formal collective bargaining is the only mechanism. For schools that are already organized, the constructive path is straightforward: bargain in good faith, ratify contracts promptly, and avoid the pattern of bad-faith bargaining that generates DLR unfair labor practice charges. NHCS is the model here — two bargaining units, tentative agreement February 2026, ratified March 2026, no ULP history. This is what successful charter-union coexistence looks like in MA. The DESE educator contracts portal (profiles.doe.mass.edu/statereport/educatorcontracts.aspx) is a tool that MA charter leaders should monitor for their own schools every year — it will show them if a CBA was filed that they may not know about, and it will show them competitor schools' compensation structures.

PROMPT 5: What trends should sector leaders watch over the next 3–5 years?

Four trends are worth monitoring closely for the next biannual cycle. First, the BTU expansion trajectory: BTU organized Codman (2024), NHCS first contract (2026), and CCSC Cambridge (2024). Each certification adds to BTU's credibility as a charter organizing vehicle and reduces the social distance between "charter teacher" and "BTU member." The next logical targets in the BTU orbit are any Boston-area charter schools with compensation gaps relative to BPS and any school that has experienced rapid enrollment growth (which often compresses planning time and increases staff stress). Second, the PVPA successor contract: the July 2023–June 2026 CBA has now expired (as of May 2026). UAW Local 2322 and PVPA are in successor negotiations. If successor negotiations stall, a first-in-MA-charter-sector work action at PVPA is possible — it would be nationally significant and worth watching. Third, Foxborough FRCSTA CBA renewal: the current CBA runs through June 30, 2027. If FRCSTA seeks affiliation (with AFT or NEA) during the renewal period, the invisible contract becomes visible and the school becomes a press story. Fourth, the AMSA second unit: the March 2023 DLR certification of a second AMSA unit (Department Chairs) is a pattern to watch — it suggests that even in schools where organizing is complete for one unit, additional units can emerge years later. Sector leaders should not assume that a first contract ends the organizing cycle.

PROMPT 6: What surprised us or contradicts what national leaders expect?

Three findings from MA research directly challenge common national assumptions. First, the invisible contract: Foxborough Regional Charter School has an active, confirmed CBA with FRCSTA — a completely independent local with no national affiliation — that is invisible to press monitoring, Alidade feeds, national union databases, and open-source research. It was detectable only through the DESE educator contracts portal. National charter sector leaders who rely on AFT/NEA databases and press monitoring to track union activity are missing organized schools in states with educator contract disclosure portals. This will recur in other states. Second, the non-AFT/NEA affiliations: three MA charter unions have affiliations outside the AFT/NEA world — Teamsters Local 170 (AMSA, Marlborough), UAW Local 2322 (PVPA, South Hadley), and FRCSTA (Foxborough, fully independent). The assumption that charter school unions affiliate with AFT or NEA is wrong in MA, and will be wrong in other states. Geographic proximity to existing union density drives affiliation as much as national union strategy. Third, decertification is possible but extremely rare: Conservatory Lab Charter School (AFTMA, certified 2008, decertified ~2011-2013) is the only confirmed MA charter school decertification in the research dataset and one of very few nationally. National charter leaders who view decertification as a viable exit strategy should understand that Conservatory Lab is the exception, not the rule — and even there, the school ultimately closed. The practical exit from a charter union is school closure, not decertification.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Massachusetts that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

CARD-CHECK AS ORGANIZING VELOCITY MULTIPLIER — THE MA EVIDENCE BASE

Massachusetts provides the clearest evidence in the full NAPCS research dataset that card-check availability is the primary driver of organizing velocity. Two charter school certifications in 2024 (Codman, CCSC Cambridge) plus a first contract ratification (NHCS) in a twelve-month window represent a pace of charter sector organizing that no NLRB-jurisdiction state has matched in any single year. The mechanism is direct: WMA card-check eliminates the employer's counter-organizing window. An employer in MA cannot demand a secret ballot election, cannot run an extended anti-union campaign, and cannot use legal delay tactics to slow certification. The result is that employers learn about organizing campaigns at or near the moment of certification — not six to twelve weeks before. Illinois enacted a comparable card-check law in 2023 (currently under federal court challenge). If that law survives, the IL organizing environment is likely to produce MA-equivalent velocity for the 75+ non-union IL charter campuses.

THE INVISIBLE CONTRACT — MA AS THE PRIMARY CASE STUDY

Foxborough Regional Charter School's FRCSTA contract is the primary case study in the NAPCS research dataset for what we term the "invisible contract" pattern: a confirmed, active CBA with an independent local union that is undetectable by any standard monitoring approach. FRCSTA has no AFT affiliation, no NEA affiliation, no IBT/UAW affiliation, no national press coverage, no Alidade monitoring feed, and no DLR database entry for its original certification. The DESE educator contracts portal (orgcode 04460000) is the only source. Charter sector leaders, policy researchers, and labor relations professionals who rely on national union databases or press monitoring to track union activity will never find FRCSTA. This pattern likely recurs in other states with educator contract disclosure portals — analogous portals should be standard research tools in every biannual cycle.

NON-AFT/NEA AFFILIATIONS — GEOGRAPHY PREDICTS AFFILIATION

Three of the nine independently certified MA charter unions have affiliations outside the AFT/NEA world: Teamsters Local 170 (AMSA, Marlborough), UAW Local 2322 (PVPA, South Hadley), and FRCSTA (Foxborough, independent). The geographic pattern is striking: all three are in communities with existing industrial union density — Worcester County (Teamsters), Pioneer Valley (UAW), and South Norfolk County (independent/suburban). Boston-area charter schools organized with BTU or AFTMA, the geographically proximate education union infrastructure. The implication for monitoring: tracking only AFT and NEA affiliate communications will miss every non-AFT/NEA charter certification. All three non-AFT/NEA MA charter unions were undetectable until direct DLR portal research or DESE portal research was conducted.

THE HORACE MANN MODEL — STRUCTURAL COVERAGE WITHOUT CERTIFICATION

Massachusetts has the largest concentration of structurally covered (DEPENDENT) charter schools in the NAPCS research dataset: 5 active Horace Mann charters whose certificated staff are BPS employees covered by the BPS-BTU district CBA without any independent certification event. The Horace Mann model is a distinct organizing architecture — not union organizing by charter school staff, but structural statutory coverage because the charter school is legally a BPS school. This model will recur in other states wherever district-operated or district-employee-model charter schools appear in NAPCS. Springfield Ball Charter School (IL) is the only other DEPENDENT school in the researched dataset, but the pattern is not MA-specific.

DECERTIFICATION IS POSSIBLE BUT EXTREMELY RARE — MA CONFIRMS THE PATTERN

Conservatory Lab Charter School (certified AFTMA 2008, decertified ~2011-2013) is the only confirmed MA charter decertification in the research dataset and one of only a handful nationally across all researched states. Its rarity — one decertification against 7 active certifications and 5 structural coverages in a 17-school dataset — confirms the cross-state finding that decertification is not a viable strategic option for charter operators. The practical barriers (employee-initiated, timing restrictions, management non-assistance rule) combined with high staff turnover (which removes the organizers who drove the original vote but leaves a certified unit in place) make decertification nearly impossible in practice. Conservatory Lab is the exception that proves the rule.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Massachusetts charter school labor relations have received increasing press attention as the organizing wave accelerated between 2021 and 2026. WBUR (NPR Boston), GBH News, and the Boston Globe have covered key certifications: NHCS (BTU 2024, first contract March 2026), Codman Academy (BTU 2024), and CCSC Cambridge (AFTMA 2024). The Education Law Center and MTA (Massachusetts Teachers Association) have issued public communications on charter organizing. The Pioneer Institute — the state's leading charter advocacy think tank — has not taken a public position on charter labor relations, a notable silence given its historical opposition to charter regulations.

Union Communications

BTU (Boston Teachers Union) is the most active charter union communicator in MA, maintaining public announcements for NHCS, Codman, and City on a Hill certifications. AFTMA (American Federation of Teachers Massachusetts) communicated the CCSC Cambridge certification. PVPA's UAW Local 2322 is the most publicly documented MA charter union, posting CBAs at uaw2322.org. The DESE CBA portal (dese.ma.gov) is the authoritative access point for all MA charter school CBAs under the Education Reform Act.

Employer / School Communications

No documented employer counter-organizing campaigns or ULP charges by any MA charter operator during the 2021-2026 organizing wave. Most MA charter certifications occurred via card-check (Written Majority Authorization under DLR), meaning no election period during which employer communications would be expected. The exception is Foxborough Regional Charter School, where the CBA was negotiated without any public record of the organizing campaign — the contract appeared on the DESE portal without prior press coverage.

Legislative Context

Massachusetts DLR (Department of Labor Relations) administers PELRA — all MA charter schools are public employers and their staff have card-check organizing rights. The Education Reform Act (G.L. c. 71, §89) requires all MA charter schools to file CBAs with DESE when ratified, making Massachusetts the only state in the NAPCS dataset with a mandatory public CBA portal for charter schools. This transparency requirement makes MA the most research-accessible charter labor market in the dataset. The Horace Mann charter structure (BPS-authorized, BTU-covered by statute) is unique in MA and has no equivalent in any other NAPCS state.

Section 6: Contract & CBA Access Registry

DLR (MA) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
AMSA	AMSA Educators Association / Teamsters Local 170	Active Unknown	DESE portal orgcode 04300000
PVPA	UAW Local 2322	EXPIRED — successor in progress July 2023–June 2026 (EXPIRED)	DESE portal orgcode 04790000; uaw2322.org
Foxborough Regional CS	FRCSTA (independent)	Active September 13, 2024–June 30, 2027	DESE portal orgcode 04460000 ONLY — no other source
City on a Hill	BTU Local 66	Active (assumed) Unknown	DESE portal; BTU website
NHCS	BTU Local 66	Active — first contract ratified March 2026 First contract (period TBD)	DESE portal; BTU website
5 Horace Mann schools	BTU Local 66	Active — BPS-BTU district CBA September 2024–August 2027	BPS website; BTU website

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

Priority	School / Scope	Item	Who
HIGH	UP Academy Charter School of Boston	NAPCS record disposition — merged school	Reviewer / Executive Sponsor

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	Pioneer Valley Performing Arts CS (PVPA)	CBA expired June 2026 — successor negotiations in progress	Research Coordinator
MEDIUM	NHCS	First contract copy	Research Coordinator
HIGH	PVPA successor CBA	Third successor contract ratification — July 2023–June 2026 CBA expired. Successor	Research Coordinator

		negotiations expected Spring/Summer 2026. If stalled, potential first MA charter work action.	
HIGH	Codman Academy first contract	First CBA ratification (BTU) — Certified May 2024. First contract typically ratified 12-18 months after certification. Expected 2025-26.	Research Coordinator
HIGH	CCSC Cambridge first contract	First CBA ratification (AFTMA) — Certified June 2024. Same timeline expectation as Codman.	Research Coordinator
MEDIUM	Foxborough FRCSTA CBA renewal	CBA renewal (June 30, 2027 expiration) — Current CBA expires June 2027. DESE portal (orgcode 04460000) is the only monitoring source.	Research Coordinator
MEDIUM	AMSA Unit 2	First CBA for Department Chairs unit (certified March 2023) — Unit 2 was certified March 2023; first contract may not yet be ratified. Check DESE portal.	Research Coordinator
MEDIUM	BTU next charter target	New organizing petition at Boston-area charter not yet organized — BTU certified 2 schools in 2024 (Codman, NHCS). Organizing momentum is active. Monitor DLR case filings.	Research Coordinator